



TEXAS CEMETERY BROKERS

Limited Special Power of Attorney

for the Sale of Cemetery Interment Rights

NOTICE: This is a LIMITED power of attorney. It authorizes the Agent named below to do ONE thing only — sell and transfer the cemetery interment rights described below on the Principal's behalf, including executing all transfer instruments and receiving the sale proceeds at closing. It grants no authority over any other property, account, or affair of the Principal.

KNOW ALL PERSONS BY THESE PRESENTS that the undersigned (the "Principal"):

PRINCIPAL'S NAME

ADDRESS

CITY / STATE / ZIP

in consideration of the Agent's due diligence to procure a buyer and payment to the Principal as separately agreed in writing, hereby appoints **Texas Cemetery Brokers**, acting through its authorized officers and representatives (the "Agent"), as the Principal's true and lawful attorney-in-fact, solely for the limited purposes stated in this instrument, with respect to the following cemetery interment rights (the "Interment Property"):

CEMETERY

COUNTY / STATE

NUMBER OF PLOTS / SPACES

PLOT(S) DESCRIPTION &
LOCATION

SECTION 1



Specific and Limited Powers Granted

The Principal grants the Agent authority to do the following with respect to the Interment Property:

- 1.1. To negotiate, accept, and execute a contract for the sale of the Interment Property;
- 1.2. To execute, acknowledge, and deliver any deed, assignment, quitclaim, transfer form, certificate, affidavit, or other instrument required by the cemetery, cemetery association, or other authority holding the records of the Interment Property (the "Cemetery Authority") to effect the sale and transfer of the Interment Property to a buyer;
- 1.3. To request, obtain, and deliver records, ownership verifications, and transfer requirements from and to the Cemetery Authority concerning the Interment Property;
- 1.4. To receive and collect the sale price and all other sale proceeds at closing on the Principal's behalf; to endorse, deposit, and hold such funds pending disbursement; and to disburse payment to the Principal as separately agreed in writing between the Principal and the Agent;
- 1.5. To pay, from the sale transaction at closing, the Cemetery Authority's transfer-related fees; and
- 1.6. To sell, release, convey, and transfer, together with the Interment Property, any associated services, merchandise, commodities, monument or marker rights, and trust or endowment-care accounts established for future need that pertain to the Interment Property, to the extent transferable; and
- 1.7. To do every other act necessary, appropriate, or incidental to marketing, selling, closing, and transferring the Interment Property and disbursing the proceeds as described above, as fully and completely as the Principal could do personally; the Principal hereby ratifies and confirms all that the Agent lawfully does or causes to be done under this instrument.

SECTION 2

Express Limitations

- 2.1. **Proceeds Handling.** The Agent is authorized to receive the sale proceeds at closing and shall disburse payment to the Principal as separately agreed in writing between the Principal and the Agent.
- 2.2. **No Other Powers.** This instrument grants no authority over any other property, asset, account, or affair of the Principal; no authority to make gifts; and no authority to create, amend, or revoke any estate-planning instrument. The Agent may exercise the powers granted here through any of its officers, employees, and authorized representatives.
- 2.3. **Fiduciary Duty.** In exercising this power the Agent shall act in good faith and within the scope of the authority granted.

SECTION 3

Effectiveness, Durability, and Revocation

- 3.1. **Effective Date.** This power of attorney is effective immediately upon execution and acknowledgment before a notary public.
- 3.2. **Durability.** THIS POWER OF ATTORNEY IS NOT AFFECTED BY MY SUBSEQUENT DISABILITY OR INCAPACITY.



3.3. Automatic Revocation. This power of attorney is revoked automatically, without further action, upon the earlier of: (a) completion of the transfer of the Interment Property and disbursement of payment to the Principal; or (b) termination or expiration of the Principal's brokerage engagement with the Agent, except as needed to complete a transaction already pending at that time.

3.4. Revocation by Principal. The Principal may revoke this power of attorney by written notice to the Agent, subject to any transaction then pending. Revocation is not effective as to a third party until that third party receives actual notice of it.

SECTION 4

Reliance by Third Parties; General Terms

4.1. Third-Party Reliance. Any Cemetery Authority, title holder, or other third party may rely on this instrument, and on the Agent's certification that it remains in effect, and is released and held harmless by the Principal for acts taken in good-faith reliance on it before receiving actual notice of its revocation.

4.2. Copies. A photocopy, scan, or electronic image of this executed instrument has the same force and effect as the original.

4.3. Governing Law. This instrument is governed by the laws of the State of Texas, including the Texas Estates Code provisions applicable to durable powers of attorney.

4.4. Severability. If any provision of this instrument is held unenforceable, the remainder continues in effect.

IN WITNESS WHEREOF, the Principal has executed this Limited Special Power of Attorney on the date stated below, before the undersigned notary public.

PRINCIPAL

PRINCIPAL PRINTED NAME

SIGNATURE

DATE

CO-OWNER PRINTED NAME

CO-OWNER SIGNATURE

DATE

If the Interment Property is owned by more than one person, ALL owners must sign and be acknowledged below.



ACKNOWLEDGMENT — STATE OF TEXAS

STATE OF TEXAS, COUNTY OF _____

This instrument was acknowledged before me on _____ (date) by
_____ (name(s) of Principal(s)).

NOTARY PUBLIC, STATE OF TEXAS _____

PRINTED NAME OF NOTARY _____

MY COMMISSION EXPIRES _____

(NOTARY SEAL)



ACCEPTANCE OF APPOINTMENT — AGENT

Texas Cemetery Brokers accepts this appointment and agrees to act within the limited authority granted above.

REPRESENTATIVE NAME _____

SIGNATURE _____

DATE _____

